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LC005617

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JANUARY SESSION, A.D. 2026

(b) It is the purpose of this chapter to promote, preserve, and protect the public health, safety, and welfare by and through the registration and regulation of persons, whether within or outside of state of Rhode Island who engage in the practice of registered interior design within the State of Rhode Island. In furtherance of this purpose, this chapter, the board of examination and

registration of interior designer in the State of Rhode Island, whose members, functions, and procedures shall be established in accordance with the provisions of this chapter.

5-97-103. Definitions.

As used in this chapter, the following terms shall have the following meanings:

(1) “Applicant” means an individual who seeks a registration in accordance with the requirements and processes set forth in this chapter and as may be established by the board.

(2) “Approved educational program” means an educational program as approved by the board.

(3) “Board” means the board of examination and registration of interior designers established pursuant to § 5-97-106.

(4) “CIDQ” means the council for interior design qualification or its successor.

(5) "Continuing education hour" or "CEH" means one continuous instructional hour, fifty (50) to sixty (60) minutes of contact, intended to increase or update the interior designer’s knowledge and competence in health, safety, and welfare subjects.

(6) “Department” means the Rhode Island department of business regulation.

(7) “Direct control and personal supervision” means the supervision of, knowledge of and acceptance of responsibility for another’s interior design work by a registered interior designer, in which the supervisor is directly involved in all practice-related judgements affecting public health, safety and welfare.

(8) “Experience” and “training” are interchangeable and mean satisfactory related employment as required by NCIDQ.

(9) “NCIDQ certification” means the certification issued by CIDQ for successful completion of the NCIDQ examination.

(10) “Nonstructural element” means an element of a building or structure which does not require structural bracing and does not contribute to the structural integrity of the building. Nonstructural elements are primarily concerned with the interior aspects of design and do not include any load-bearing components. This definition encompasses both non-seismic and non-structural elements.

(11) “Practice of registered interior design” means the analysis, planning, design, documentation, and management of interior nonstructural construction and alteration projects in compliance with applicable building design and construction, fire, life safety, and energy codes, standards, regulations, and guidelines. The “practice of registered interior design” includes all the following:

(i) Programming, space planning, pre-design analysis, and conceptual design of interior

1 nonstructural elements;

2 (ii) Preparation of documents and technical submissions related to interior construction,

3 finish materials, furnishings, fixtures, and equipment;

4 (iii) Rendering of designs, plans, drawings, specifications, contract documents, and other

5 interior technical submissions;

6 (iv) Administration of interior nonstructural element construction and contracts relating to

7 nonstructural elements in interior alteration or construction of a proposed or existing building or

8 structure;

9 (v) Alteration or construction of interior nonstructural elements;

10 (vi) Preparation of a physical plan of space within a proposed or existing building or

11 structure including any or all of the following:

12 (A) Determinations of circulation systems or patterns;

13 (B) Determinations of egress requirements based on occupancy loads;

14 (C) Assessment and analysis of interior safety factors to comply with building codes related

15 to interior nonstructural elements;

16 (D) Design of the exit access and exit components of the means of egress system within a

17 building based on the calculated occupant load;

18 (E) Interior material selection and application for all portions of an interior construction

19 project, including means of egress system; or

20 (F) Compliance with applicable building design and construction, accessibility standards,

21 fire, life-safety, and energy codes, standards, regulations and guidelines.

22 (12) “Registration” means the approval issued to an individual by the board indicating that

23 the individual is a registered interior designer and is authorized to engage in the practice of

24 registered interior design in Rhode Island.

25 (13) “Registered interior designer” means an individual who holds a certificate of

26 registration or license issued by the board pursuant to §§ 5-97-115, 5-97-116, and 5-97-117.

27 (14) “Responsible control” means the direct personal supervision over, and detailed

28 knowledge of, the content of all technical submissions that are ordinarily exercised by a registered

29 interior designer when applying the requisite standard of care.

30 (15) “Seal” means the symbol meeting the specifications set forth herein that evidences

31 registration as an interior designer pursuant to §§ 5-97-115, 5-97-116, and 5-97-117.

32 (16) “Stamp” means the instrument to manually apply a seal evidencing registration of an

33 interior designer pursuant to §§ 5-97-115, 5-97-116, and 5-97-117.

34 (17) “State” means any jurisdiction recognized by NCIDQ, including any foreign

1 jurisdictions in which Rhode Island is a signatory to a mutual recognition agreement or similar
2 agreement with NCIDQ.

3 (18) “Technical submissions” means the documents covering the practice of registered
4 interior design necessary to demonstrate compliance with applicable regulatory requirements
5 and/or to fabricate or construct a project including, but not limited to, drawings, digital models,
6 specifications, performance criteria, and installation requirements.

7 **5-97-104. Exempt or excluded persons and activities.**

8 (a) Nothing in this chapter shall be construed to authorize a registered interior designer to
9 engage in the practice of professional engineering or architecture in this jurisdiction or provide
10 services that constitute the practice of professional engineering or architecture, except as otherwise
11 provided in this chapter.

12 (b) The practice of registered interior design does not include modifications or additions to
13 any of the following:

14 (1) Changes of building use to occupancies not already allowed by the current building or
15 structure or changes of building use to occupancies of a greater hazard;

16 (2) The construction classification of the building or structure according to the international
17 building code;

18 (3) The structural system of a building, including changing the building's dead load on the
19 structural system;

20 (4) The building envelope, including exterior walls, exterior wall claddings, exterior wall
21 openings, exterior windows and doors, balconies and similar projections, roof assemblies and
22 rooftop structures, and glass and glazing for exterior use in both vertical and sloped applications in
23 buildings and structures;

24 (5) Mechanical, plumbing, heating, air conditioning, ventilation, electrical, low voltage
25 systems, elevators and conveying systems, fire protection systems, or fire alarm systems;

26 (6) Design of or modifications to an exit stair or exit discharge portion of a means of egress
27 system; or

28 (7) Construction that materially affects life safety systems pertaining to fire safety of
29 structural elements or the fire protection of structural elements, smoke evacuation and
30 compartmentalization systems, or fire-rated vertical shafts in multi-story structures.

31 (c) The following individuals are not required to obtain a registration pursuant to this
32 chapter:

33 (1) A person engaging in work as an employee of an architect or registered interior
34 designer, if the work does not include responsible control, or a consultant retained by an architect,

1 or registered interior designer or engineer;

2 (2) An individual who prepares plans, drawings, or specifications for buildings for their
3 personal private residential use, including single family or dual family homes;

4 (3) A person who prepares drawings of the layout of materials or furnishings or in the
5 selection of materials or furnishings used in interior design, including:

6 (i) Decorative accessories;

7 (ii) Wallcoverings, wall finishes or paint;

8 (iii) Floor coverings, tile, wood, stone or concrete;

9 (iv) Window coverings;

10 (v) Lighting fixtures which do not disrupt structural elements;

11 (vi) Plumbing fixtures which do not disrupt structural elements;

12 (vii) Professional services limited to the design of kitchen and bath spaces or the
13 specification of products for kitchen and bath areas in noncommercial settings; and

14 (viii) Furniture, equipment, cabinetry or millwork, if the preparation or implementation of
15 those drawings or the installation of those materials or furnishings is not regulated by any building
16 code or other law, ordinance, rule or regulation governing the alteration or construction of a
17 structure.

18 **5-97-105. Delegation of authority.**

19 The responsibility to enforce the provisions of this chapter is hereby delegated to the State
20 of Rhode Island board of interior designers established pursuant to § 5-97-106. The board
21 established pursuant to § 5-97-106, shall have all the duties, powers, and authority specifically
22 granted by, or otherwise necessary to enforce this chapter, as well as such other duties, powers, and
23 authority as it may be granted from time to time by law.

24 **5-97-106. Board of interior designers.**

25 The board shall consist of seven (7) members, at least three (3) of whom shall be a
26 representative(s) of the public, and the remainder of whom shall be registered interior designers
27 who possess the qualifications specified in § 5-97-107. Members of the board shall have the
28 expertise necessary for the effective and efficient regulation of the practice of registered interior
29 design.

30 **5-97-107. Qualification for board membership.**

31 (a) Each registered interior designer member of the board shall:

32 (1) Be a resident of the State of Rhode Island;

33 (2) Be a registered interior designer;

34 (3) Maintain any other professional license or registration issued in this or any other

1 jurisdiction, and

2 (4) Have had at least five (5) years of experience as a practicing registered interior designer.

3 (b) Each public member of the board shall be a resident of the State of Rhode Island. Each

4 public member of the board shall not be, nor shall ever have been:

5 (1) A registered interior designer;

6 (2) The spouse of a current or former registered interior designer; or

7 (3) An individual who has ever had any material financial interest in the provision of

8 registered interior design services or engaged in any activity directly related to the practice of

9 registered interior design.

10 **5-97-108. Board member appointment and oversight.**

11 In accordance with the principle of separation of powers and to provide for sufficient

12 oversight by the respective branches of government, the governor shall appoint the members of the

13 board in accordance with the provisions of this chapter and the constitution of the State of Rhode

14 Island. In addition, the governor shall have the authority to remove members of the board with or

15 without cause.

16 **5-97-109. Terms.**

17 (a) Except as provided in subsection (b) of this section, members of the board shall be

18 appointed for a term of three (3) years, except that members of the board who are appointed to fill

19 vacancies that occur prior to the expiration of a former member's full term shall serve the remaining

20 portion of such unexpired term.

21 (b) The terms of the members of the board shall be staggered so that the terms of no more

22 than two (2) members shall expire in any year. Each member shall serve until a qualified successor

23 is appointed unless such member cannot serve by reason of such member's resignation or removal

24 from membership on the board pursuant to § 5-97-110.

25 (c) Board members are eligible to serve for up to two (2) consecutive full terms. The

26 completion of the remaining portion of an unexpired term shall not constitute a full term for

27 purposes of this section.

28 (d) Any vacancy that occurs in the membership of the board for any reason, including

29 expiration of term, removal, resignation, death, disability, or disqualification, shall be filled as

30 prescribed in § 5-97-108 as soon as practicable in order to ensure the efficient administration of

31 this act.

32 **5-97-110. Removal of board member.**

33 A member of the board may be recommended for removal upon an affirmative vote of

34 three-quarters (3/4) of members of the board otherwise eligible to vote upon one or more of the

following grounds:

(1) The refusal or inability for any reason of a member of the board to perform the duties required of a board member in an efficient, responsible, and professional manner;

(2) The misuse of a board member position to obtain, or attempt to obtain, any financial or material gain, or any advantage personally or for another, through such office;

(3) A final adjudication by a recognized body, including any court, that a board member violated this chapter or any other jurisdiction's law governing the practice of registered interior design; or

(4) Conviction of a crime other than a minor traffic offense.

5-97-111. Organization of the board.

(a) The board shall elect from its members a chairperson, and such other officers as it deems appropriate and necessary, to the conduct of its business. The chairperson shall preside at all meetings of the board and shall perform those duties customarily associated with the position and such other duties assigned from time to time by the board. The chairperson may establish board committees as appropriate and necessary to the furtherance of board business and may designate board members as committee members.

(b) Officers elected by majority vote of the board shall serve terms as defined by the board commencing with the day of their election and ending upon election of their successors or removal by affirmative majority vote of the board members otherwise eligible to vote.

5-97-112. Executive director.

(a) Under the oversight of the board, the executive director shall be responsible for the proper performance of the board's duties.

(b) The board may delegate authority to the executive director as necessary to properly fulfill the board's duties.

5-97-113. Meetings of board.

The board shall hold regular meetings to transact business in compliance with all applicable state laws and as otherwise may be established by regulations of the board.

5-97-114. Power and duties of the board.

(a) The board shall have the power and responsibility to administer the provisions of this act consistent with chapter 35 or title 42 ("administrative procedures").

(b) The board shall have the power to make, adopt, amend, and repeal regulations as may be necessary to carry out the purposes of this chapter including, but not limited to, regulations concerning:

(1) The meetings and proceedings of the board;

1 (2) The requirements for the issuance of registration and the registration of firms, the
2 renewals thereof, and the fees associated with these;

3 (3) Mandatory standards of professional conduct concerning misrepresentations, conflicts
4 of interest, incompetence, disability, violations of law, dishonest conduct, or other unprofessional
5 conduct for those individuals or organizations regulated by this chapter, which standards shall be
6 enforceable under the disciplinary procedures of the board;

7 (4) Requirements for renewal of registration designed to promote the continued
8 professional development and competence of registered interior designers. Such requirements shall
9 be designed solely to improve the professional knowledge and skills of a registered interior designer
10 directly related to the current and emerging bodies of knowledge and skills of registered interior
11 designers; and

12 (5) When necessary to protect the public health, safety, and welfare, the board shall require
13 such evidence as it deems necessary to establish the continuing competency of registered interior
14 designers as a condition of renewal of registration.

15 (c) The adoption, amendment, or revocation of regulations and the publication and
16 distribution of the regulations shall be subject to the provisions of chapter 35 of title 42
17 ("administrative procedures").

18 (d) The board shall keep an official registry of all registered interior designers. The roster
19 shall be properly indexed and open for public inspection and information.

20 (e) The board shall have the power to carry out the purposes of this chapter and enforce
21 any provision of this chapter or any regulations promulgated hereunder, together with all other
22 powers and duties delegated to the board pursuant to this chapter.

23 **5-97-115. Qualifications for an initial registration.**

24 (a) To obtain a registration to engage in the practice of registered interior design in Rhode
25 Island, an applicant must submit to the board:

26 (1) A complete and signed written application in the form prescribed by the board;

27 (2) Evidence of graduation and receipt of a degree from an approved educational program;

28 (3) Evidence indicating the successful completion of the experience deemed necessary by
29 the board;

30 (4) Evidence of the successful completion of the NCIDQ examination administered by
31 CIDQ;

32 (5) Payment of all applicable fees specified by the board; and

33 (6) Documentation satisfactory to the board of United States citizenship or other lawful
34 immigration status as required under Rhode Island, law or, in the absence of Rhode Island, law,

1 under applicable federal law.

2 (7) The applicant's social security number, or individual taxpayer identification number,
3 recognizing that the applicant's social security number or individual taxpayer identification number
4 furnished to the board shall not be deemed a public record under Rhode Island law and shall not be
5 open to public inspection.

6 (b) In lieu of furnishing evidence supporting subsections (a)(2), (3) and (4) of this section,
7 an applicant may provide a copy of the applicant's NCIDQ certification.

8 (c) A registration shall be effective upon issuance by the board. A person issued a
9 registration may practice as a registered interior designer in this state, subject to the provisions of
10 this chapter and the board regulations.

11 **5-97-116. Qualifications for reciprocal registration.**

12 To obtain a registration through reciprocity in Rhode Island, an applicant shall:

13 (1) Provide documentation satisfactory to the board that such applicant:

14 (i) Holds a current and valid registration or license to practice registered interior design
15 issued by another jurisdiction or a licensing authority recognized by the board; and

16 (ii) Holds an NCIDQ certification.

17 (2) Submit to the board a completed and signed application and pay the required fee.

18 (3) Provide to the board a social security number, individual taxpayer identification
19 number, or an affidavit attesting that the applicant has no such number, for the board to establish
20 the applicant's identity. Any such information provided to the board shall be released by the board
21 to identify applicants, including verifying an applicant's identity and certification status with the
22 council for interior design qualification, and as may be required by law.

23 **5-97-117. Continuing education; Requirements for registration renewal.**

24 (a) The board may, by regulation, establish the processes and requirements for a registered
25 interior designer to demonstrate their continuing competence to practice registered interior design
26 through continuing education. The board shall have the authority to make the determination of
27 acceptable program content for such continuing education.

28 (b) The board shall, by regulation, establish requirements and procedures for the renewal
29 of registration, including the continuing education requirements.

30 (c) Each registration shall be renewed on or before April 30 of each year. The completed
31 application for renewal together with the required renewal fee shall be submitted to the board on
32 or before the renewal date. Upon demonstration that a registered interior designer has satisfied the
33 continuing education requirements established by regulation of the board, the board shall issue a
34 renewal of the registration.

1 (d) Upon failure to renew within thirty (30) days after the date set for expiration, the
2 registration shall become automatically inactive. Such registration may be renewed at any time
3 within one year following the expiration date upon proof of continuing competency and payment
4 of the renewal fee plus a late renewal fee.

5 **5-97-118. Expired and inactive registrations.**

6 (a) Failure to renew a registration within thirty (30) days of the designated renewal date
7 shall result in the expiration of the registration and the extinguishment of authority to practice
8 registered interior design in the State of Rhode Island. Each applicant for reinstatement of an
9 expired registration shall bear the burden of substantiating by documentation satisfactory to the
10 board that such applicant has met continuing education requirements as set forth by the board and
11 has submitted an application for reinstatement and renewal fee.

12 (b) In connection with any application for reinstatement of a registration, the board may
13 impose any additional reasonable requirements it deems necessary to fulfill its public protection
14 mission.

15 (c) The board may, in its discretion, consider any relevant extenuating circumstances duly
16 submitted in conjunction with any petition and application for the reinstatement of a registration
17 where the applicant can demonstrate hardship, so long as the board maintains its public protection
18 mission in considering any such petition and application. The board shall set forth rules and
19 regulations pursuant to the reinstatement of a registered interior designer's registration.

20 (d) The board shall, by regulation, set forth procedures for the issuance of an inactive
21 registration to a registrant whereby such individual shall be exempt from registration renewal
22 requirements. During the period in which a registration is in inactive status, the registered interior
23 designer shall not engage in the practice of registered interior design in Rhode Island, or use the
24 title "registered interior designer".

25 (5) The board shall by regulation set forth procedures and requirements for the
26 reinstatement of a registered interior designer's registration.

27 **5-97-119. Firm registration.**

28 To perform registered interior design services in Rhode Island, as a firm or other legally
29 formed business entity, such firm must first meet the requirements set forth by the board. The board
30 shall promulgate rules and regulations regarding firm registration.

31 **5-97-120. Source of data.**

32 The board may use documentation and verified data stored by CIDQ in the same way that
33 it may use data stored by the board to establish an applicant's qualifications for a registration.
34 Notwithstanding any other provision of law to the contrary, the board shall share such information

1 with CIDQ as may be reasonably requested from time to time; provided that, CIDQ agrees to
2 maintain the confidentiality of such information.

3 **5-97-121. Unlawful practice.**

4 (a) Except as otherwise provided under this chapter, it shall be unlawful for any person to
5 engage in the practice of registered interior design or use the designation “registered interior
6 designer” or any other designation, words, or letters indicating registration as a registered interior
7 designer, including abbreviations, or hold himself or herself out as a registered interior designer
8 unless duly registered as such by the board. This section does not prohibit a person who is exempt,
9 pursuant to the chapter, from holding themselves out to the public or soliciting business as an
10 interior designer.

11 (b) It is unlawful for a person to seal any technical submission, specification, report or other
12 document with the seal after the registration of the registered interior designer named therein has
13 expired or has been suspended or revoked, unless the registration has been renewed or reissued.

14 **5-97-122. Seal.**

15 (a) Upon being issued a registration, each registered interior designer shall obtain a seal
16 authorized by the board, which shall include the registered interior designer’s name, the number of
17 their registration, and the title “registered interior designer”.

18 (b) A registered interior designer may sign and seal a technical submission covering the
19 scope of registered interior design and shall have the authority to submit such technical submission
20 to a state or local governmental entity for the purpose of obtaining any requisite permit for an
21 interior alteration or construction project.

22 (c) All technical submissions issued for permitting by a registered interior designer shall
23 be signed, sealed, and dated only by the registered interior designer in responsible control. A
24 registered interior designer shall not sign and seal a technical submission that was not prepared by
25 the registered interior designer or under the direct supervision and responsible control of the
26 registered interior designer.

27 (d) The board may adopt rules and regulations specifying the manner in which registered
28 interior designers may electronically transmit any technical submission, specification, report or
29 other document to a state or local government entity for purposes of obtaining a building permit.

30 **5-97-123. Record keeping.**

31 A registered interior designer shall maintain documentation of technical submissions for a
32 minimum of five (5) years and make records available to the board upon request. Records shall be
33 adequate to demonstrate the registered interior designer’s responsible control over the technical
34 submissions.

1 **5-97-124. Prohibited acts.**

2 A person may not knowingly:

3 (1) Advertise or put out any sign, card or other device which indicates to the public that the
4 person is a registered interior designer or that the person is otherwise qualified to practice as a
5 registered interior designer, without having a registration pursuant to this chapter.

6 (2) Use or attempt to use the registration of another registered interior designer.

7 (3) Use or attempt to use a registration that has been suspended, revoked, or placed on
8 inactive or delinquent status.

9 (4) Obtain or attempt to obtain registration from the board by fraud.

10 (5) Make any willfully false oath or affirmation to the board.

11 (6) As a registered interior designer, accept compensation in connection with a registered
12 interior design project, except as payment for the provision of registered interior design services,
13 which would reasonably appear to compromise the registered interior designer's professional
14 judgment in serving the best interests of the client or public.

15 **5-97-125. Discipline.**

16 All disciplinary matters shall be handled in accordance with the department's rules of
17 procedure for administrative hearings, 230-RICR-10-00-2.

18 **5-97-126. Complaint procedures.**

19 The board shall establish comprehensive procedures for reporting and receiving complaints
20 of a violation of this chapter.

21 **5-97-127. Duty to report misconduct.**

22 Any registered interior designer, applicant, or registered firm who has knowledge of any
23 conduct by any individual, business entity, or any other group or combination of persons that may
24 constitute grounds for disciplinary action under any provision of this chapter or any regulation duly
25 promulgated hereunder shall report such conduct to the board.

26 SECTION 2. This act shall take effect on July 1, 2026.

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EXPLANATION
BY THE LEGISLATIVE COUNCIL
OF
A N A C T
RELATING TO BUSINESSES AND PROFESSIONS -- STATE OF RHODE ISLAND
INTERIOR DESIGN PRACTICE ACT

1 This act would enact the State of Rhode Island interior design practice act to control and
2 regulate the professional practice of interior designers. This act would establish a board existing of
3 seven (7) members, four (4) of whom would be registered interior designers. The board would have
4 the authority to promulgate rules and regulations to register interior designers, regulate the unlawful
5 practice of interior design, and enforcement of such rules and regulations.

6 This act would take effect on July 1, 2026.

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